



ORIGINAL

Complaint under The Shipping Act of 1984, as amended violation of section 10 (d) (1) (Bimsha International v Chief Cargo Services Inc.)

RECEIVED

2016 FEB -5 PM 4 06

OFFICE OF THE SECRETARY
FEDERAL MARITIME COMMISSION

16-03

Complainant Party

KSB Shipping & Logistics LLC

50 Cragwood Road, Suite # 123,

South Plainfield, NJ -07080

As agents for the following parties

Shipper: Risona Incorporated, 1 Keats Place, Hicksville, NY 11801 USA

Shipper: Bracha Export Corp DBA Continental, 100 Newfield Avenue, Edison NJ 08837 USA

Consolidator: R&A International Logistics Incorporated, 175-57 148th Road, Jamaica, New York 11434



Versus the Respondent Party:

Respondant Party:

Direct Container Lines also known as Vanguard Logistics.

300 Middlesex Avenue, Carteret, NJ-07008

I) Complainant is an LLC company formed in the state of New Jersey in 2009

The company is an NVOCC & a Freight Forwarder

FMC number is ---- 022499NF

II) Respondent is an incorporated company in USA.

Direct Container Line and DCL are trade names of NACA Logistics (USA), Inc. dba Vanguard Logistics Services dba Vanguard, 857 East 230th Street, Carson, CA 90745 USA.

The respondent is an NVOCC and their OTI # is ----- 0172371N

III) Allegation of Jurisdiction Synopsis of statutory basis of claim given below:

Claim amount on DCL (Direct container Lines) dba Vanguard Logistics is US\$191110.00 due to Breach of trust and violation of Shipping Act of 1984, as amended violation of section 10 (d) (1) (Bimsha

International v Chief Cargo Services Inc.) resulting in massive loss to our customer and their suppliers in the year 2013 Gist of the claim is as follows.

Parties to the case on NVOCC B/L.

DOCUMENT # NYCVIE3344445D

NVOCC Direct Container Line --- OTI # 017237N (DBA Vanguard Logistics) – Booked shipment under their contract with NYK Line and also issued their original bills of lading.

Shipper Risona Inc.—1 Keats Place, Hicksville NY—11801, USA –(One of the two suppliers, whose name appears in shippers column in the bill of lading issued by DCL) Commercial

Invoice and packing list of Risona Inc is attached

The other supplier involved in this shipment, as this was a consolidated container is as follows:

Bracha Export Corp DBA Continental, 100 Newfield Avenue, Edison NJ 08837 USA

Commercial invoice and packing list of Bracha Export DBA Continental is attached, which was

Loaded on the 20' container along with material of Risona Inc, as this was a consolidated

Container

Consolidator: R&A International Logistics Incorporated, 175-57 148th Road, Jamaica, New York 11434 (This consolidator consolidated both the suppliers material in 1x20 FT container and issued a container packing certificate)

Consignee Cargo Clearing Services GMBH, Austria – in the Bill of Lading issued by DCL

Notify World Company S.R.O, Slovakia – The ultimate consignee who took the goods and never paid resulting in enormous loss to the suppliers.

Forwarding Agent: KSB Shipping & Logistics LLC

Document Presentation: Cargo partner GMBH, Austria – Agents of Vanguard Logistics in Vienna, Austria who released shipment to the ultimate consignee's broker, without presentation of originals and also despite the fact that the shipment was on hold status.

AES was filed for US\$191110.00 by R&A International Logistics the consolidator & IATA agent on behalf of both suppliers including Risona Inc New York, who was one of the suppliers and whose name is reflected on the BL issued by Direct Container Lines DBA Vanguard Logistics. AES was filed

With the invoice amount of both Risona Inc and Bracha export and once AES approval was received

R&A International who filed the AES on behalf of both suppliers gave the AES approval number to Us and we forwarded the shipping instructions to DCL DBA Vanguard Logistics with the AES approval Number

Cargo was consolidated by R&A International Logistics New York, who is an IATA agent on behalf of both the suppliers and they issued a container packing certificate and tendered the loaded and sealed container to Direct Container Lines DBA Vanguard Logistics through KSB Shipping & Logistics LLC for shipment from New York to Austria Vienna. We were acting as agents of R&A International

Cargo Partner Austria who were the agents of Vanguard Logistics in Europe released the delivery order to the consignee's broker Cargo Clearing GmbH Austria without the latter presenting the Original Bill of Lading and also despite the fact that the shipment was on hold status and despite the fact that Vanguard Logistics representative had given the assurance in writing to us that the shipment will be on hold

Original Bills of Lading is still in the possession of the consolidator namely R&A International Logistics in New York resulting in all the suppliers of this shipment which was consolidated by R&A International Logistics in 1x20' container, lost considerable amounts of money totaling to US\$191,110.00

NVOCC BL is dated February 10th, 2013 (Attached)

Based on the documentary proof furnished by us, (All relevant documents are attached),

NVOCC Direct Container Lines accepted in writing to us stating, that, their agents in Austria namely, Cargo partner had committed a mistake in releasing the shipment without presentation originals and also despite the fact that the shipment was on hold and also held them responsible and subsequently gave in writing to us stating that they have asked their agents to settle (Email copy

Received from DCL DBA Vanguard Logistics are attached which clearly prove their fault and their Acceptance of the fault.)

Unfortunately, till date, despite the fact that they admitted their mistake and asked their agents to settle, Direct Container Line DBA Vanguard Logistics have not settled anything and all our efforts in the past few years have gone in vain

That is the reason we approached FMC and spoke to general Counsel Mr Daniel of FMC over phone and he confirmed, that, we can file a written formal complaint with FMC before the deadline time limit of 3 years is over. Hence we are filing this written formal complaint and this is the statutory basis for our claim

IV) Attached the following which will establish clearly proof of what we have stated above in the

Synopsis of the claim

1. NVOCC-Direct container Line DBA vanguard logistics email holding their overseas agent Cargo partner in Austria responsible
- 2 NVOCC-Direct container Line DBA vanguard logistics email asking their overseas agent Cargo partner Austria to settle the claim
- 3 Subsequently an email from NVOCC –Direct container Line DBA vanguard logistics email Stating that they will be unable to settle the loss as they are unwilling to front the claim amount
- 4 NVOCC—Direct container Lines DBA Vanguard Logistics email writing to us that this matter will ultimately go to court.
- 5 NVOCC—Direct Container Lines – BL Front Page copy
- 6 Proof of AES filed with US Census Bureau by R&A International Logistics New York,the consolidator
- 7 Consolidator –R&A International Logistics issued container packing certificate alongwith IMO/DGR final forms from both suppliers ,namely ,Risona Inc & Bracha Export DBA continental Same is attached,which we submitted to DCL,DBA vanguard Logistics.
8. DCL DBA Vanguard Logistics Representative confirming to us in writing putting the shipment on hold
- 9 Proof of cargo partner agents of vanguard logistics in Austria releasing the shipment to the Consignees broker without presentation of a copy of original Bill of lading as originals were Issued by vanguard logistics and also despite the fact that they confirmed that the shipment Is on hold
- 10 Proof that the trucking company of the consignee and their brokers in Austria taking delivery of cargo for which till date the consignee has not paid any payment to the suppliers here in USA and is absconding and untraceable till date This has resulted in the considerable loss to the suppliers as indicated above and the narrative clearly proves with facts and proof that all this happened due to fact that NVOCC—Direct container Line with whom we at KSB Shipping & Logistics LLC Booked the shipment with them due to their rates offered by them was competitive,releasing, the shipment through their agents cargo partners to the consignee and their brokers at destination, without authorization and without presentation of originals and also when the cargo was specifically put on hold and they confirmed to us that it is on hold This is a clear violation of shipping act and since they after agreeing to settle ,till date have not moved an inch further to settle shows their intentions are suspect and possibly they are awaiting the time limit to be over under shipping act.
11. Details of consignee and their broker at destination in Vienna and Slovakia
- 12 Packing slip of the shipment& Commercial Invoice from both the suppliers attached

All above proof given clearly establishes the fact Direct container Line DBA Vanguard Logistics have clearly violated the shipping act resulting in considerable loss to US Suppliers as they have indulged

in breach of trust and clearly violated the shipping act of 1984 for which they are responsible to settle the claim of suppliers which they have been unwilling to do so till date. Hence we are forced to approach FMC to get this issue resolved by bringing Vanguard Logistics to negotiation table to settle the claim officially

- V). In view of above we seek reparations for the unlawful conduct and breach of trust on the part of Direct container Line DBA Vanguard Logistics to the tune of the claim amount of US\$191110.00 Plus interest and attorneys fees incurred in this matter and we seek FMC's help to get this issue resolved so that the suppliers involved get the compensation for their loss.

Date 03 February, 2016

R. Sridhar
Sridhar Rajagopalan

R. Sridhar
2/4/16

Director

KSB Shipping & Logistics LLC
50 Cragwood Road, suit \$ 123,
South plainfield, NJ-07080
Tel :908-834-2438 –ext 301
Fax 908-834-2439
Cell 908-577-4950
Email rsridhar@ksbshipping.com

As agents for the following parties

Shipper: Risona Incorporated, 1 Keats Place, Hicksville, NY 11801 USA

Shipper: Bracha Export Corp DBA Continental, 100 Newfield Avenue, Edison NJ 08837 USA

Consolidator: R&A International Logistics Incorporated, 175-57 148th Road, Jamaica, New York 11434

State of New jersey ,County,Middlesex. SS.

Sridhar Rajagopalan,being first duly sworn on oath,deposes and says he is The Director of
KSB Shipping&Logistics LLC,agent of shippers,Risona Inc & Bracha Export DBA continental and
Also agent of consolidator,R&A International logistics,and is the person,who signed the foregoing
Complaint and that he has read the complaint and the facts stated there in,upon information
Received from others,affiant believes to be true

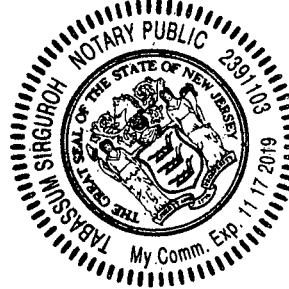
Subscribed and sworn to be before me,a Notary Public in and for the State of new jersey,

County of Middlesex this 17th day February 2016



Notary public

CC. Shipper –Risona Inc,1 Keats Place,Hicksville NY—11801



CC. Shipper – Bracha Export DBA Continental –100 Newfield Avenue,Edison NJ-08837

CC. Consolidator – R&A International Logistics Inc – 175-57,148th Road,Jamaica,NY--11434

NVOCC HOLDING OVERSEAS AGENT RESPONSIBLE

①

Subject: RE Fwd RE NYCVIE3344445D

From: "Joe Newman \VLS USA\" <joe.newman@vanguardlogistics.com>

Date: 4/12/2013 6 45 PM

To: "RSRIDHAR" <rsridhar@ksbshipping.com>, "Markus Jakob-kaeferle / FIS" <markus.jakob-kaeferle@cargo-partner.com>

CC: "James Prestia" <james.prestia@vanguardlogistics.com>, "Nitin Bhagat" <nitin@ksbshipping.com>, <sksharma@ksbshipping.com>, <karl.laufer@vanguardlogistics.com>

Dear Sridhar,

We have already replied that our agent is trying to locate the cnee and/or the goods. We have also replied that we have held them responsible for the loss. I do not think this will be a swift process.

Dear Markus,

As you can see, our customer is growing restless. When will this be resolved?

Regards,

Joe

NVOCC ASKING OVERSEAS AGENT TO SETTLE-UP.

②

Subject: RE Fwd RE NYCVIE3344445D

From: "Joe Newman \VLS USA\" <joe.newman@vanguardlogistics.com>

Date: 4/17/2013 3 15 PM

To: "RSRIDHAR" <rsridhar@ksbshipping.com>

I wrote to Markus today requesting that they settle up.

Regards,

Joe

RE Fwd. RE NYCVIE3344445D

**NVOCC DISAGREEING TO SETTLE
LOSS (3)**

Subject: RE Fwd RE NYCVIE3344445D

From: "Joe Newman \VLS USA\" <joe.newman@vanguardlogistics.com>

Date: 6/12/2013 6.57 PM

To: "RSRIDHAR" <rsridhar@ksbshipping.com>

Dear Sridhar,

We have gone over this before I do not think we are going to get an acceptable solution from Cargo-Partner and their insurance company We are not going to front the settlement.

Regards,

regards,

Joe

Page 1 of 6
NVOCC WRITING TO US (KSB) THAT THIS
MATTER WILL GO TO COURT (4)
Sridhar Rajagopalan

From: "Joe Newman (VLS-USA)" <joe.newman@vanguardlogistics.com>
Date: Monday, April 27, 2015 4:36 PM
To: "Sridhar Rajagopalan" <rsridhar@ksbshipping.com>
Cc: <bill.grimes@vanguardlogistics.com>
Subject: RE: NYCVIE3344445D

Hello Sridhar,

As we have already received correspondence from lawyers and fully expect that this incident will eventually go to court we are not able to comment further or give written statements in this matter

Regards,

Joe

→ NVOCC B/L FRONT

(5)



DIRECT CONTAINER LINE



OTI: 017237N

SHIPPER/EXPORTER (2) (COMPLETE NAME AND ADDRESS) RISONA INC 1 KEATS PLACE HICKSVILLE, NY 11801,US		DOCUMENT NO.(5) NYCVIE3344445D Payment Ref# PPD 2039044543
CONSIGNEE (3) (COMPLETE NAME AND ADDRESS) NOT NEGOTIABLE UNLESS CONSIGNED TO ORDER CARGO CLEARING SERVICE GMBH OBJEKT 262,STIEGE 8,2 STOCK,RAUM A02 050 FLUGHAFEN WIEN, AUSTRIA A-1300,AT Phone 1 700732285/Fax		EXPORT REFERENCE (6) 124174/KSB
NOTIFY PARTY (4) (COMPLETE NAME AND ADDRESS) WORLD COMPANY S R O POHRANICNA 1/5 VAT ATU67496033 KOMARNO, SLOV 94501,SK		FORWARDING AGENT REFERENCES(7) KSB SHIPPING & LOGISTICS LLC FMC 022499F 50 CRAGWOOD ROAD SUITE 123 SOUTH PLANFIELD, NJ, 07080
PLACE OF RECEIPT(12) NEW YORK		POINT AND COUNTRY OF ORIGIN(8)
VESSEL FLAG (13) DUESSELDORF EXPRESS/04E01	PORT OF LOADING (14) NEW YORK	DOCUMENT PRESENTATION(9) CARGO-PARTNER GMBH Phone 5 98880/Fax 5 988811378 1 AIRPORTSTRASSE
PORT OF DISCHARGE (15) HAMBURG	PLACE OF DELIVERY (16) VIENNA (= WIEN)	INTERNAL REFERENCE (10) File Ref 2033021154/1

Particulars Furnished By Shipper

MARKS AND NUMBERS(17)	NO. OF PKGS(18)	DESCRIPTION OF PACKAGES AND GOODS(19)	GROSS WEIGHT(20)	MEASUREMENT
SL#S 338933; 300684; 300685	1X20' ST CONTAINER	SLAC 12 SKIDS STC 885 FIBERBOARD BOXES 12008 GLASS BOTTLES UN-1266, PERFUMERY PRODUCTS, CLASS-3, PG-II, FP 21-DEG C LIMITED QUANTITY EMERGENCY CONTACT # 01-352-472-7295--DGA/AAG CONTRACT # 10-057 HS code 3303 00 0000 AES# X20130205007423 Shipper's Load, Stow, and Count PORT/PORT Shipped on Board Feb 10, 2013 NON-NEGOTIABLE PROFORMA, PROOF COPY ONLY Freight Prepaid	5,212 000 KG 11,490 502 LBS	CBM 0 0000 CFT
Container No/Seal No 20 ' / NYKU3057673				
THESE COMMODITIES, TECHNOLOGY, OR SOFTWARE WERE EXPORTED FROM THE UNITED STATES IN ACCORDANCE				
Total No of Pkgs		1		

For Excess Ad Valorem Value See Clause 19 On Reverse Side

Charges, Including Freight **Payment Ref#** 2039044543

RECEIVED FOR SHIPMENT from the MERCHANT in apparent good order and condition unless otherwise stated herein, the GOODS mentioned above to be transported as provided herein, by any mode of transport for all or any part of the Carriage, SUBJECT TO ALL THE TERMS AND CONDITIONS appearing on the face and back hereof and in the CARRIER'S applicable Tariff, and are available electronically at <http://ddi-global.com>, to which the Merchant Agrees by accepting this BILL OF LADING.

NON-NEGOTIABLE PROFORMA, PROOF COPY ONLY

Where Applicable law requires and not otherwise, one original BILL OF LADING must be surrendered, duly endorsed, in exchange for the GOODS or CONTAINER(S) or other PACKAGE(S), the others to stand void. If a "Non-Negotiable" BILL OF LADING is issued, neither an original nor a copy need be surrendered in exchange for delivery unless applicable law so requires.

BY **NACA Logistics (USA), Inc. dba Vanguard Logistics Services**
dba Direct Container Line, as the Carrier

Dated **Feb 10, 2013**

B/L NO NYCVIE3344445D

AES COPY

6

File Edit Do Tracing Reports Rates Schedule-BP's EDI Help

Quote Bookings B/L Invoices Tracing Clients Conflicts Container Tracing eSupport JOC Sailing Scheduler AES Results Pending

<< Master B/L File No. 124174 >> B/L Printed 2/05/2013
 124174-001-1-1001-0000

Save ☐ Parties are Related ☐ To Be Sold In Route ☐ Print: NY Country: US Edit

Update Export Declaration Information...

Ex/Doc Mode	Status	Date	Time	ITN
Normal	ACCEPTED	2/05/2013	10:12 AM	X20130205007423

AES Exempt / Reason

USFPI USFPI ID USFPI ID Type Cargo Origin Origin State
 RISINC 133152178 EIN NY ☐ Parties Related ☐ Routed

Method of Transport U.S. Port of Export Export Date Exporting Carrier Post Dispatch Flag
 Vessel NEWARK 2/05/2013 NYKLN NYK LINE (NIPPON YUS ☐ Hazardous Goods

☐ Spill Shipment by Air

In Bond Code Entry Number FTZ Number Shipper Supplied ITN (e.g. X20081231123456)
 70-Merchandise NOT shipped Inbond

Ultimate Consignee Ultimate Consignee Type Country Of Destination Port Of Unloading Vessel
 AT HAMBURG DUSSELDORF EXPRESS DE01

Schedule B No	HTS	Qty 1	Unit	Qty 2	Unit	Qty 3	Unit	Value	Description
0150700020	8507.10.80	1	PC						PERSONAL DIGITAL PROCESSOR

New Edit Delete

Copy Commercial Invoice Import Customer Data Save Cancel

Date	Time	Message	Code
02/05/2013	10:12AM	A SHIPMENT REPLACED	X20130205007423

414 B/L 7/12/2013

7

IMO DANGEROUS GOODS DECLARATION

1 Shipper/Consignor/Sender RISONA INC 1 KEATS PLACE HICKSVILLE, NY 11801 USA		2 Transport Document Number BOOKING #6053706330		
		3 Page 1 of 3 pages	4 Shipper's Reference INV#35061	
6 Consignee WORLD COMPANY S.R.O. POHRANICNA 1/5 945 01 KOMARNO SLOVAKIA VAT: ATU67496033		5 Freight Forwarder's Reference 124174/KSB		
		7 Carrier (to be declared by the Carrier) NYK LINE		
SHIPPER'S DECLARATION I hereby declare that the contents of this consignment are fully and accurately described below by the Proper Shipping Name, and are classified, packaged, marked and labelled/placarded and are in all respects in proper condition for transport according to the applicable International and national governmental regulations.				
10 Vessel/Flight & Date DUSSELDORF EXPRESS VOY.04E01	11 Port/Place Handling NEW YORK	9 Additional Handling Information		
12 Port/Place of Discharge HAMBURG	13 Destination VIENNA			
14 Shipping Marks seal#s 338933 300684 300685		*Number & Kind of Packages, Description of Goods UN1266 PERFUMERY PRODUCTS CLASS 3 PACKING GROUP: II EMS NO.: F-E, S-D FLASH POINT: 21C OR 69, 8F 275 FIBREBOARD BOXES ON 6 SKID(S) 1100 GLASS BOTTLES		GW (kg) 1217 kg G 1097 kg Net
		24 HOUR EMERGENCY CONTACT: DGA/AAG CONTRACT NO. 10-057 24 HOUR EMERGENCY TELEPHONE: +1 352 472 7295		
15 CTU ID No. NYKU3057673	16 Seal No.	17 CTU Size & Type 1x20 ft	18 Tare Mass (kg)	19 Total Gross Mass (kg)
CONTAINER/VEHICLE PACKING CERTIFICATE I hereby declare that the goods described above have been packed/loaded into the container/vehicle identified above in accordance with the applicable provisions of IMDG code 5.4.2. MUST BE COMPLETED AND SIGNED FOR ALL CONTAINER/VEHICLE LOADS BY PERSON RESPONSIBLE FOR PACKING/LOADING		21 Receiving Organization Receipt Received the above number of packages/containers/trailers in apparent good order and condition, unless stated hereon: RECEIVING ORGANIZATION REMARKS:		
20 Name of Company RISONA INC.		Hauler's Name	22 Name of Company Preparing Note RISONA INC	
Name/status of Declarant TAHMINA FARAZ/AGENT		Vehicle Registration No.	Name/Status of Declarant RAJ DANDONA/PRESIDENT	
Place and Date 01/30/13 RICHMOND HILLS, NY		Driver Name and Date	Place and Date HICKSVILLE, NY 1/30/13	
Signature of Declarant <i>Tahmina Faraz</i>		Driver's Signature	Signature of Declarant <i>Raj Dandona</i>	



IMO DANGEROUS GOODS DECLARATION

1 Shipper/Consignor/Sender BRACHA EXPORT 100 NEWFIELD NAVENUE EDISON NJ 08837		2 Transport Document Number BOOKING # 6053706330		
		3 Page 2 of 3 pages	4 Shippers Reference INVOICE 33684	
Consignee WORLD COMPANY SRO POHRANICNA1/5 KOMARNO SLOVAKIA		5 Freight Forwarder's Reference 124174/KSB		
		7 Carrier (to be declared by the Carrier) NYK LINE		
SHIPPER'S DECLARATION I hereby declare that the contents of this consignment are fully and accurately described below by the Proper Shipping Name, and are classified, packaged, marked and labeled/placarded and are in all respects in proper condition for transport according to the applicable international and national governmental regulations				
10 Vessel/Flight & Date DUSSELDORF EXPRESS/04E01		9 Additional Handling Information		
11 Port/Place Handling NEW YORK TO HAMBURG				
14 Shipping Marks		*Number & Kind of Packages, Description of Goods		GW (kg) CUBE (m³)
		UN NO.1266, PERFUMERY PRODUCTS CLASS:3 PACKING GROUP II FLASHPOINT:21°C LIMITED QUANTITY 6-skins 610-fiberboard boxes 10908-glass bottles EMERGENCY RESPONSE NUMBER: 646-872-3715 DAVID FRIEDMAN		3995 KGG 2900 KGG NET
15 CTU ID NO NYKU3057673	16 Seal No. 338933 300684/300685	17 CTU Size & Type x20 ft	18 Tare Mass (kg)	19 Total Gross Mass (kg)
CONTAINER/VEHICLE PACKING CERTIFICATE I hereby declare that the goods described above have been packed/loaded into the container/vehicle identified above in accordance with the applicable provision of IMDG code 5.4.1.2 MUST BE COMPLETED AND SIGNED FOR ALL CONTAINER/VEHICLE LOADS BY PERSON RESPONSIBLE FOR PACKING/LOADING		21 Receiving Organization Receipt Received the above number of packages/containers/trailers in apparent good order and condition, unless stated hereon: RECEIVING ORGANISATION REMARK:		
20 Name of Company CONTINENTAL COSMETIQUE		Hauler's Name	22 Name of Company Preparing Note CONTINENTAL COSMETIQUE	
Name/status of Declarant TAHMINA FARAZ/AGENT		Vehicle Registration No.	Name/Status of Declarant RACHEL KOPLOWITZ MANAGER	
Place and Date 02/05/13 RICHMOND HILLS, NY11418		Driver Name and Date	Place and Date EDISON NJ N08837 2/5/13	
Signature of Declarant <i>Tahmina Faraz</i>		Driver's Signature	Signature of Declarant <i>Rachel Koplowitz</i>	

(3) of (3)

(7)

****CONTAINER PACKING CERTIFICATE****

It is declared that the packing of the goods into the container/vehicle has been carried out in accordance with the applicable provisions.

Container No: NYKU3057673

Booking No: 6053706330

1. The container/vehicle was clean, dry and apparently fit to receive the goods.
2. Packages which need to be segregated in accordance with applicable segregation requirements have not been packed together onto or in the container/vehicle (unless approved by the competent authority concerned in accordance with 7.2.2.3);
3. All packages have been externally inspected for damage, and only sound packages have been loaded.
4. Drums have been stowed in an upright position, unless otherwise authorized by the competent authority, and all goods have been properly loaded and, where necessary, adequately braced with securing material to suit the mode(s) of transport for the intended journey;
5. Goods loaded in bulk have been evenly distributed within the container/vehicle;
6. For consignments including goods of class 1 other than division 1.4, the container/vehicle is structurally serviceable in accordance with 7.4.6;
7. The container/vehicle and packages are properly marked, labeled and placarded, as appropriate;
8. When solid carbon dioxide (CO₂ - dry ice) is used for cooling purposes, the container/vehicle is externally marked or labeled in a conspicuous place, such as at the door end, with the word: "DANGEROUS CO₂GAS (DRY ICE) INSIDE. VENTILATE THOROUGHLY BEFORE ENTERING"; and
9. A dangerous goods transport document, as indicated in 5.4.1, has been received for each dangerous goods in consignment loaded in the container/vehicle.

COMPANY NAME: R&A INTERNATIONAL LOGISTICS, INC. 718-553-7100-

NAME/TITLE OF SIGNATORY: MAQSOOD AHMED/AGENT

2/5/13

SIGNATURE: _____

M. Ahmed

DCL CONFIRMING

SHIPMENT

ON HOLD:

8

EXHIBIT #

----- Original Message -----

Subject: RE. [FWD: KSH SHIPPING]

From. "Latiecha Anderson \VLS USA\"

<latiecha.anderson@vanguardlogistics.com>

Date Wed, February 20, 2013 5 37 pm

To <hardik@ksbshipping.com>, <rsridhar@ksbshipping.com>

Cc: <sanji@ksbshipping.com>

Ok ,

I will place on hold

DIRECT CONTAINER LINE

857 E.230TH STREET

CARSON , CA 90745

PH:888-325-0040 EXT.3080

Fax:310-847-3146

Latiecha.Anderson@nacalogistics.com

passion for excellence
transport + logistics

DCL's AUSTRIAN AGENT

D.O. RELEASE PROOF

cargo-partner

uu cargo-partner GmbH
nn F O Box 1, Airportstrasse
A-2401 FISCHAMEND/Austria

Martin Zsivkovits
Phone 435938811237
Fax 435938811200
zsivkovits@cargo-partner.com
ATU16818905 / DVR1472167

uu uu
nn nn

CARGO CLEARING SERVICE GMBH
OBJ 262, STIEGE 8/2/RAUM AG2048
1300 VIENNA AIRPORT

Abs RIGONA INC
USA 11801 NEW YORK, USA
Emp. CARGO CLEARING SERVICE GMBH
A 1300 VIENNA AIRPORT
Frc CPT
Leistungsdatum 13-03-04

CNRD 339112

uu uu
nn nn

RECHNUNG NR. CPF 020310/2013

UID A1064803807
B/L NYCVIE33444480
4044/

1 339112 5161303/0002/0001 13-03 04

Schiff DUESSELDORF EXPRESS

Dep NEW YORK Dest HAMBURG
ETD: 012-02-10 ETA 2013-02-22

Zeicher/Nr Anzahl Art Inhalt Gewicht Verrechnungsgewicht
NYKU 305 767-3 885 BOX PARFUMERAPIKEL 5 212,00 kg 5 212,00 kg
20' DV

uu uu
nn nn

WSL	Text	NET	FUR Betrag
822	terminal Handling Charges	0 %	220,00
411	Bearbeitungsgebühr	0 %	60,00
454	release fee	0 %	25,00
210	T1-Abfertigung	0 %	35,00
NETTO		0 %	340,00
NETTO ge amt			340,00

uu uu
nn nn

EUR-Betrag 340,00

uu uu
nn nn

Wir ersuchen um Ueberweisung an die Bank Austria Unicredit Group, Wien
EUR AT18 1100 0096 4320 0000; SWIFT: BKAUATWW; Kto.09643200000,BLZ:11000
USD AT85 1200 0096 4320 0002,SWIFT:BKAUATWW;Kto 09643200002,BLZ:12000

* Zahlungstermin 13-04-03 spätestens bei uns eingehend *

"steuerfrei gem § 6 Abs 1 UStG"

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ORIGINALS R STILL EINGEGANGEN AM 04. MRZ. 2013
WITH SHIPPER.
CARGO 3m/303/0005/0001
PARTNER, AUSTRIA... RELEASED
WITHOUT AUTHORIZATION.

www.cargo-partner.com

13135
B67785L_857784L/02.12.2013

DESTINATION DELIVERY POD



ROLAND

roltruck

ROLAND Spedition GmbH

Am Concorde Park 1/B2/32
A-2320 Schwechat
T +43 1 7283743 51
F +43 1 7283743 951

10

LKW - Referenznummer: 13824/02/...600..		Datum: 05.03.13	
Bahnposition: 131100 2435		Termin: 0800	
Containernummer: NYKU 305 767-3			
sonstige Vermerke:		TRUCKINGAUFTRAG: IMPORT: (X) / EXPORT: /	
Kennzeichen SZM: S-568 NC		Aufleger: S-238 NH	
Leer Depot: Wien Depot		Freistellung:	
Voll Cont. Depot: Wien Liniol		Zu Verfügung: Nyk-Line	
Frachtführer Vega Int.Car Transport & Logistic Trading Ges.m.b.H., A-5020 Salzburg			
Containerdaten: Containergröße: 20' BX Inhalt: 12 Pkg UH 1266 7712kg Gewicht: Portimenerzeugnisse Siegelnummer: Gefahrgut		Be- bzw. Entladestelle: Cargo Service Objekt 262 / 2. Stock / Stiege Raum A 02.048 RT-1300 Flughafen Wien	
Ladereferenz: 131100 2435		Destination: aus USA	
Bemerkungen des Frachtführers: ZOLLADRESSE bei Verzollungsanfahrt:			
ANKUNFT:		ABFAHRT:	
Zollgut: TA: 13AT100000TVGP2.196			
Ankunft / Datum/Zeit: Be-Ent-ladestelle 05.03.13 0800		Datum, Stempel und Unterschrift: Inhalt 10' Pol + 35 Kartan m. Orig. Siegel 3389 33 CCS CARGO CLEARING SERVICE GMBH OBJ. 262, STIEGE 8, 2. STOCK, RAUM A02.048 A-1300 FLUGHAFEN WIEN TEL. 01/7007 32285 FAX 01/7007 32286 MA 1 DVUGL	
Abfahrt / Datum/Zeit: Be-Ent-ladestelle 05.03.13 0800		Datum, Stempel und Unterschrift: CCS CARGO CLEARING SERVICE GMBH OBJ. 262, STIEGE 8, 2. STOCK, RAUM A02.048 A-1300 FLUGHAFEN WIEN TEL. 01/7007 32285 FAX 01/7007 32286 MA 1 DVUGL	

Subject: booking # NYCVIE3344445D

From: "Tahmina" <tahmina@ralogistics.us>

Date: 3/22/2013 9.51 AM

To: <rsridhar@ksbshipping.com>, "Roxanne Kadri" <roxanne.kadri@ralogistics.us>



Here are all the information

Consignee info

WORLD COMPANY S.R.O

POHRANICNA 1/5

945 01 KOMARNO SLOVAKIA

VAT # ATU67496033

Tuba office # 011-36-3060-50907

I will have his cell # later today

Agent info

CARGO CLEARING SERVICE GMBH

OBJEKT 262, STIEGE 8, 2

STOCK, RAUM A02 050

A-1300 FLUGHAFEN WIEN AUSTRIA

TEL. 011-43-1-7007-32285

Klaus-Metin .cell 011 43 646 405 9823

Office 431 700 732283

Tahmina Faraz

Ocean Freight Department

R&A International Logistics, Inc.

125-12 89th Avenue

Richmond Hill, NY 11418

Phone +1 718 553 7100

Fax +1 718 553 7101

Email tahmina@ralogistics.us

SUPPLIER 1

P/S LIP

12 A

RISONA PACKING SLIP**CUSTOMER:** WORLD COMPANY **DATE:** 01/30/13**VIA:** SEA **INV#** 35061

PALLET #	BOX#	BOXES	EDT/EDP SPR/SPL	QTY	TOTAL
1	1-50	50	3PCS GIFT SET	4	200
2	51-100	50	3PCS GIFT SET	4	200
3	101-150	50	3PCS GIFT SET	4	200
4	151-200	50	3PCS GIFT SET	4	200
5	201-250	50	3PCS GIFT SET	4	200
6	251-275	25	3PCS GIFT SET	4	100
	TOTAL BOXES	275		TOTAL PCS	1100
PALLETS	BOXES	WEIGHT	QTY		
6	275	1217 KG	1100		



Invoice

00035061

1 Keats Place, Hicksville NY 11801 USA
Tel. 516 883 5800 Fax: 516 513 1739
Sales@RisonaWorldwide.com

Bill To:

WORLD COMPANY S.R.O
POHRANICNA 1/5
945 01 KOMARNO, SLOVAKIA
VAT ATU67496033

Ship To:

WORLD COMPANY S.R.O
CARGO CLEARING SERVICE GMBH
OBJEKT 262, STIEGE 8, 2
STOCK, RAUM A02.050
A-1300 FLUGHAFEN WIEN AUSTRIA
TAX NO ATU64903616

SALESPERSON		YOUR NO	SHIP VIA	SHIP DATE	TERMS	DATE	PG.
RIKKI		sea	R & A		Ex-Works Hicksville, NY Net 14	1/30/2013	1
QTY	ITEM NO	DESCRIPTION			PRICE \$ USD	ITEM TOTAL	
1,100		GIFT SET 2.2 OZ EDT SPRAY +3.4 OZ BL + 3.4 OZ SG			\$38.00	\$41,800.00	
TOTAL QTY 1,100 1. THE GOODS ON THIS INVOICE REMAIN THE PROPERTY OF RISONA INC. UNTIL PAID IN FULL. 2. WE RESERVE THE RIGHT TO RETRIEVE THE GOODS IN THE EVENT OF NON PAYMENT 3. SHORTAGES OR BREAKAGES MUST BE REPORTED WITHIN 4 DAYS OF RECEIPT OF GOODS. 4. OVERDUE ACCOUNTS WILL BE SUBJECT TO 1.5% MONTHLY CHARGE. WIRE DETAILS: HSBC BANK USA / SHORE RD / PT WASHINGTON NY 11050 AC NO 960 023 020 SWIFT MRMDUS33 ABA. 021 00 1088					SALE AMT		\$41,800.00
					FREIGHT		\$0.00
					TOTAL AMT		\$41,800.00
					APPLIED		\$0.00
					BALANCE DUE	\$41,800.00	

SUPPLIER 2

P/SLIA

12 B

BRACHA EXPORT CORP
100 NEWFIELD AVENUE
EDISON NJ 08837

33684

01/24/13

1

WORLD COMPANY SRO VAT ATU67496033
POHRANICNA 1/5
KOMARNO, SLOV 94501

WORLD COMPANY SRO VAT ATU67496033
POHRANICNA 1/5
KOMARNO, SLOVA , 94501

WORLD

HEDY

1/24/2013

2,160	JUSTCILOVEHEROZ	SD	I LOVE HER
2,160	JUSTCAV01 2 OZ	SD	JUST CAVALLI W EDT
2,268	JUSTCBLUE01 2 OZ	SD	EDT BLUE JUST C
1,215	JUSTCILOVE012 OZ	SD	I LOVE HIM
1,215	JUSTCAVM01 2 OZ	SD	JUST CAVALLI HIM
360	JOOPMS4 3 PC		2.5/S, 1.7 SG, 1.7 ASB
510	BODYK04 3.3 OZ	SD	EDT BODY KOUROS
120	CWWSET4 3 PC		3.4/S, LOTION, GEL
120	BOSSSOUL01 3 OZ	SD	EDT BOSS SOUL
120	ENERGIZE02 4.2 OZ	SD	EDT HUGO ENERGISE
120	PALOMA20 3.4 OZ	SD	EDP PALOMA PICASSO
240	WISH04 2.5 OZ	SD	BDP WISH TESTER
120	CHAMPIONSET2 PC		3.4/S, SPORTS FLASK
180	LOLITASET8 2 PC		3.4/S EDP, 3.3 LOTION

Total Cartons: 610
Total Styles 14

BRACHA EXPORT CORP
100 NEWFIELD AVENUE
EDISON NJ 08837

33684

01/24/13

1

WORLD COMPANY SRO VAT ATU67496033
POHRANICNA 1/5
KOMARNO, SLOV 94501

WORLD COMPANY SRO VAT ATU67496033
POHRANICNA 1/5
KOMARNO, SLOVA , 94501

WORLD			HEDY	BOAT	1/24/2013			
2,160	JUSTCILOVEHEROZ	SD	I LOVE HER		60.00	78 %	13.00	28,080.00
2,160	JUSTCAV01 2 OZ	SD	JUST CAVALLI W EDT		50.00	75 %	12.50	27,000.00
2,268	JUSTCBLUE01 2 OZ	SD	EDT BLUE JUST C		50.00	80 %	10.00	22,680.00
1,215	JUSTCILOVE012 OZ	SD	I LOVE HIM		60.00	83 %	10.00	12,150.00
1,215	JUSTCAVM01 2 OZ	SD	JUST CAVALLI HIM		50.00	80 %	10.00	12,150.00
360	JOOPMS4 3 PC		2.5/S, 1 7 SG, 1 7 ASB		65.00	67 %	21.50	7,740.00
510	BODYK04 3.3 OZ	SD	EDT BODY KOUROS		65.00	63 %	24.00	12,240.00
120	CWWSET4 3 PC		3.4/S, LOTION, GEL		65.00	58 %	27.00	3,240.00
120	BOSSSOUL01 3 OZ	SD	EDT BOSS SOUL		65.00	60 %	26.00	3,120.00
120	ENERGIZE02 4.2 OZ	SD	EDT HUGO ENERGISE		75.00	63 %	28.00	3,360.00
120	PALOMA20 3 4 OZ	SD	EDP PALOMA PICASSO		84.50	50 %	42.50	5,100.00
240	WISH04 2.5 OZ	SD	EDP WISH TESTER		80.00	80 %	16.25	3,900.00
120	CHAMPIONSET2 PC		3.4/S, SPORTS FLASK		85.00	72 %	24.00	2,880.00
180	LOLITASET8 2 PC		3 4/S EDP, 3.3 LOTION		110.00	71 %	31.50	5,670.00

Total Cartons: 610
Total Styles 14

149,310.00

0.00 149,310.00